Applying for building control approval

The guidance on this page describes the information you must submit to the Building Safety Regulator (BSR) when applying to do any of the following:

- construct a new higher-risk building
- make changes to an existing building that either makes it a higher-risk building, or stops it being a higher-risk building
- carry out certain building work to an existing higher-risk building

The role of BSR

BSR oversees and approves building work for higher-risk buildings. These are buildings that have at least:

- 7 storeys or are at least 18 metres high
- 2 residential units or are a hospital or a care home

A higher-risk building with at least 2 residential units must be registered with BSR before people live there.

There's separate guidance about building control approval for higher-risk buildings, it tells you:

- the building work you need approval for, and the building work you do not need approval for
- about the building control approval process
- managing building work after approval

How to submit information for the application

You should submit and manage a building control approval application online.

This guidance sets out the information you'll be asked to provide when making the application online.

There are several documents you'll need to upload, they should be:

- PDFs
- smaller than 1GB
- named using only letters, numbers, spaces, hyphens and underscores

Keep the contact details for the application up to date

After you submit your application you'll be assigned a case officer to help manage the application. Tell your case officer if you need to update the:

- email address you use to access the online application
- contact details connected to the application, including the contact details for the principal designer or principal contractor

Details of the person making the application

As the person making the application, provide:

- your name, telephone number and email address
- the name, address and type of organisation you work for
- the name of the application

Client authorisation

If you are not the client, upload written proof that the client has authorised you to make the application. This authorisation must confirm that the client:

- agrees to the application being made
- gives approval for the information submitted in the application

Details of the client, principal designer and principal contractor

Provide the name, address, type of organisation and contact details for the:

- client
- principal designer
- principal contractor

After you've submitted your application, you must tell BSR if the client, principal designer or principal contractor changes. You can do this by using the online service to manage a building control application.

Building name and location

Provide the building's:

- name
- location, either by entering its address or its easting and northing coordinates

Drawings and plans

Upload the drawings and plans for the project. It may not be necessary to upload all the files you have, only upload the drawings and plans that help you:

- describe the project and the details of the work involved
- explain the scope of the work
- show how the work complies with building regulations

You should refer to these drawings and plans throughout your application and direct BSR to the relevant parts.

Clearly label your drawings and plans. Upload a reference file so that BSRcan easily find the parts you're referring to. The reference file should list the name of each file with a clear description of what it is.

Proposed work

Provide:

- the number of residential units, and non-residential areas the building will have after the proposed work is completed
- a description of the proposed work (in 2,000 characters)
- the estimated build time
- the planning reference number, if you have one
- a partial completion strategy if you intend to occupy parts of the building before all the building work is completed

Building height

Provide the height that the building will be after the proposed work is completed. Height is calculated in metres from the ground level to the top floor that you can, or will be able to, walk on.

Ground level is the level of land immediately next to the building. If that land is uneven, count from the lowest part of the land immediately next to the building.

If your building has different sections, use the height of the highest section, or highest proposed section.

Do not measure the roof unless there is, or will be, a residential unit on it.

Number of storeys

Provide the total number of storeys that the building will have after the proposed work is completed.

Include all existing and proposed storeys from the ground level to the top floor that you can, or will be able to, walk on.

Include the following whether there will be a residential unit on it or not:

- any storeys where the floor (finished floor surface) is at or above ground level
- any storey where any part of the ceiling is at or above ground level
- any mezzanine or gallery floor with an internal floor area that is at least 50% of the largest floor above or below it (excluding those below ground level)

Do not include:

- any storey where the whole ceiling is below ground level
- the roof
- any floor that is used only for machinery or plant rooms
- any mezzanine or gallery floor with an internal floor area that is less than 50% of the internal floor area of the largest floor above or below it (excluding those below ground level)

Intended use of the building and each storey

Provide the primary intended use of the building once the building work is completed, such as:

- care, residential or nursing home
- hospital
- student accommodation
- other residential institution like a prison or boarding school
- residential dwellings, like flats or maisonettes
- office
- industrial, like a factory
- retail or commercial
- any other non-residential use, like a car park

Provide a brief description of each storey (in 2,000 characters). For example, ‘ground and storey 1: retail and commercial’. If your building has more than one structure, provide details for all structures.

Site and drainage

Local enactments

If any local enactments apply to the site you'll need to submit an explanation about how you will comply with them.

A local enactment is any rule, regulation, byelaw, order or award made under any act which is managed by local bodies such as:

- local authorities
- operators of transport systems
- public utilities

Drains and sewers

You'll need to submit a description about the drainage precautions you'll take if the proposed work is over or within 3 metres of a:

- drain
- public or private sewer
- disposal main

If you're constructing a new drain or private sewer, upload a site location plan of at least 1:1250 scale. The plan must show the approximate location of any proposed:

- connection to be made to the sewer
- surface water discharge

If no connection is to be made to the sewer, the site location plan must show the proposals for the discharge of the proposed drain or private sewer, including the location of any:

- septic tank and secondary treatment system
- wastewater treatment system
- cesspool

New buildings constructed in stages

You can apply for a ‘staged application’. A staged application is where building work is split into different stages and each stage:

- is treated and assessed separately
- can start or finish on the same date, or different dates, as other stages

You can apply for a staged application where stage one of the project meets the definition of ‘commencement’. This is different for complex and non-complex buildings.

This guidance explains staged applications for:

- multiple tower projects in complex buildings
- single tower projects with no more than one storey below ground level, in non-complex buildings

Staged applications for multiple tower projects

A staged application may be appropriate for a multiple tower project where:

- buildings are on a shared podium with multiple connected parts
- as a minimum, all foundations and structure of the stage one tower’s lowest floor level will be completed

Subsequent stages should relate to the remaining building work for the towers.

Before submitting a staged application for a multiple tower project, you should contact BSR for advice.

Staged applications for single tower projects

A staged application may be appropriate for a single tower project which has no more than one storey below ground level, where the following will be completed in stage one:

- the foundations
- any basement level

- the structure of the ground floor level

Where a single tower higher-risk building is to be built in 2 stages, BSRexpects the foundations up to the ground floor slab or plinth to be included in stage one. The building work above ground level should then be part of any subsequent stage.

You must not start any building work until the building control application for that stage is approved.

BSR reviews staged applications on a case-by-case basis. Unless an extension is agreed, BSR will take up to 12 weeks to assess applications for each stage.

Information to submit for the first stage of the application

When you start a building control application using the online service, you'll be asked if you want to make a staged application. If you select 'yes' you'll need to submit:

- how many stages there will be
- the estimated start and end date of the first stage
- the name of the subsequent stages, and the estimated start and end date of those subsequent stages

Upload a 'staged work statement' which should include:

- a description of the first stage of work
- a summary of the work beyond the first stage
- an estimate of when each stage will start

If you intend to occupy parts of the building before all the building work is completed, upload a partial completion strategy.

Information to submit for subsequent stages of the application

When you're ready to make the application for the next stage of building work, contact your case officer. For each stage of the application, you must provide:

- the name of the stage you're applying for
- detailed plans and drawings
- a 'subsequent stages statement,' which sets out the work beyond the stage you're applying for
- any other documents that direct BSR to the relevant parts of the drawings and plans
- an updated partial completion strategy, if you submitted one as part of your building control approval application

You must not start work on any stage of building work until BSR approves it.

Site location plan

Upload the site location plan. This must be to a scale of not less than 1:1250. It must show:

- the building's size, position and relationship to adjoining boundaries
- the building's curtilage boundaries, and the size, position and use of every other building or proposed building within the curtilage
- the width and position of any street on or within the boundaries of the curtilage of the building

Building regulations compliance statement

Upload the building regulations compliance statement. This must show:

- the approach taken to make sure building regulations are met
- that the proposed building work, once built, will meet building regulations

In the statement refer to the drawings and plans, and direct BSR to the relevant parts.

For each element of the building work, set out in your statement:

- how the planned work will meet the relevant functional requirements of the building regulations

- the guidance, standards or design codes you intend to follow to meet building regulations

For each element of the building work make sure you explain:

- why you have chosen to follow certain guidance, standards or design codes
- your reasoning for how following the chosen approach means that the building work will comply with building regulations

Change control plan and making changes

Change control plan

Upload the change control plan. It must show how all changes will be managed and recorded, including how:

- the client will have the oversight and control needed to manage the work
- who will make the decision in the organisation about the different types of changes
- how all advice will be recorded about each change, including who gave the advice and how it will be recorded even if it is not followed
- the decision process used to determine which changes are notifiable or major
- the changes that have been submitted to BSR will be identified

The plan must show how the impact of any changes will be considered, including how:

- any changes will be considered and discussed with others
- the principal designer and principal contractor will identify and assess the effect of changes
- the information and documents submitted as part of the building control approval application will be reviewed and revised

If your building control application is approved, the documents you uploaded for the application are known as the ‘agreed documents’.

You must comply with the agreed documents throughout the build. Any change to an agreed document is known as a ‘controlled change’. You must set out in your change control plan how:

- you'll manage and assess each controlled change in accordance with your change control plan
- controlled changes will be recorded in your change control log

How to record changes: change control log

The principal contractor must create and maintain a change control log. It should record changes made to the project throughout the build. You'll be asked to submit the change control log when you apply for a completion certificate.

For each controlled change, the following should be recorded in the change control log:

- the name of the individual recording the change
- a description of the change
- why you are making the change, for example, a change of design approach or availability of materials
- whether the change is a recordable change, a notifiable change or a major change
- a list of the name and occupation of each person, if any, whose advice was sought in relation to the proposed change and a summary of any advice given
- an assessment of which agreed document is affected by the proposed change and confirmation that a revised version has been produced

In the change control log, explain how building regulations will still be met after the change is carried out. You must set out how the:

- building work will still comply with all applicable building regulations
- management of the project will still comply with all applicable building regulations

For each change explain how any updates to the strategies, policies and procedures in the agreed documents have been shared and recorded in accordance with the golden thread of information.

If a change relates to a mandatory occurrence report, include details about it in the change control log.

How to make changes: change control process

Read the guidance about making changes to a higher-risk building project. It tells you:

- about the change control process
- what notifiable and major changes are
- how to submit changes to BSR

Construction control plan

Upload the construction control plan. It must describe the strategies, policies and procedures you'll use to make sure:

- the building work will meet building regulations
- those working on the project are competent to carry out the work they are contracted to do, and have enough information and training
- that designers, contractors and others working on the building cooperate and share information
- the construction control plan is effectively managed

Set out the strategies, policies and procedures you'll use to collect the evidence needed to support your application. Describe how you'll:

- record and keep evidence that the building work meets building regulations
- capture 'as built' evidence to support the completion certificate application

Include a list of the expected evidence that will be collected during the building work. Explain how it will be collected and who will collect it.

In the construction control plan give the name and a summary of the responsibilities of:

- the principal contractor
- the principal designer
- any other organisation or sole trader who will carry out the work

The construction control plan must describe how and when you'll review the plan.

Do not upload a construction phase health and safety plan instead of a construction control plan. If you do, your application can be rejected.

Competent person scheme work

If some of the project's building work is being carried out under a competent person scheme, provide the name of each scheme provider. In the construction control plan you must set out how you will monitor and manage the scheme work.

If all of the project's building work is being carried out under a competent person scheme, you do not need to apply for building control approval.

Competence declaration

Upload the competence declaration signed by the client. It must confirm that the client has:

- taken all reasonable steps to check that the principal designer and principal contractor are competent to carry out their duties
- asked those working on the project if they have been issued with a serious sanction in the last 5 years

If any individuals or organisations have been issued with a serious sanction in the last 5 years, then the competence declaration must also state:

- who those individuals or organisations are
- what the serious sanctions are
- what considerations the client has made about the serious sanctions in relation to the work

Read the guidance about design and building work: meeting building requirements it tells you more about:

- the duty of the client to appoint competent individuals and organisations
- serious sanctions
- the competence requirements for those working on the project

- how competence requirements are different under Construction (Design and Management) Regulations 2015

Fire and emergency file

Upload a fire and emergency file if you're applying to:

- construct a new higher-risk building
- carry out category A work to an existing higher-risk building

If you're planning to carry out category B work, you may need to upload a fire compliance statement instead.

The fire and emergency file is often known as a 'fire strategy'. It must include plans showing how the work complies with the regulations to provide:

- adequate means of escape and warning in event of fire
- appropriate measures to inhibit fire spread inside the building
- appropriate measures to inhibit fire spread on the outside of the building
- reasonable access and facilities for the fire service

It must set out how the:

- building safety risks could affect the building
- design ensures compliance with regulations related to structural failure and fire spread
- owner will need to manage and maintain the building so it can be evacuated in an emergency, including considering the occupiers' behaviours

Fire compliance statement for category B work

Upload a fire compliance statement if you're applying to carry out category B work that might impact the spread of fire in the building. The fire compliance statement may also be known as a 'fire strategy' for the work.

The statement must provide plans showing how the work complies with the regulations to provide:

- adequate means of escape and warning in event of fire
- appropriate measures to inhibit fire spread inside the building
- appropriate measures to inhibit fire spread on the outside of the building
- reasonable access and facilities for the fire service

Mandatory occurrence reporting plan

Upload the mandatory occurrence reporting (MOR) plan. This plan must describe the MOR systems operated by the principal designer and principal contractor. The systems must be in place before the building work starts.

The systems should allow anyone on the site to report building safety incidents or risks that have caused, or if not remedied are likely to cause:

- the death of a significant number of people
- serious injury to a significant number of people

Building safety incidents and risks involve at least one of the following:

- structural failure of the building
- the spread of fire or smoke in the building

Partial completion strategy

New higher-risk buildings: partial completion strategy

You'll need a partial completion strategy if you intend to occupy any part of the building while building work continues.

Existing higher-risk buildings: partial completion strategy

You'll need a partial completion strategy while building work continues if you intend to:

- occupy any new residential unit created by the work
- move people out of part of the building because of the building work, and then reoccupy it

Information you'll need to include in your strategy

The partial completion strategy must set out:

- how the building was designed to be occupied in parts
- the parts of the building that will be occupied while work continues
- the measures, strategies and policies the owner should follow to manage safety for occupied parts while building work continues
- any assumptions made, such as the condition of the building or the behaviour of the occupants

Direct BSR to any relevant drawings and plans that help describe and support your strategy.

A higher-risk building with at least 2 residential units must be registered with BSR before people live there. You will need a completion certificate to register the building. Read the guidance about applying for completion certificates, it tells you:

- when to apply for a certificate
- more about full and partial completion certificates
- the information you need to provide to apply